

1.

CASE #	CASE NAME	HEARING NAME
CVRI2204955	THAMMAVONGSA VS SANGYONE	MOTION TO VACATE JUDGMENT, RECALL WRIT OF EXECUTION, AND STAY WAGE GARNISHMENT

Tentative Ruling:

DENY

This court has already denied two motions to vacate in this matter, on 4/7/26 and on 6/22/26. Defendant filed a Response (Answer) to the Complaint on 12/7/2022 and has filed several Claims of Exemption in response to Plaintiff's efforts to garnish. Defendant cannot plausibly now claim that he has not received actual notice of this action. In addition, the relief available under CCP § 473.5 must be sought within a "reasonable time" and *in no event later than two years after entry of default judgment* or 180 days after written service of notice that default or default judgment has been entered, whichever comes first. (emphasis added) (CCP § 473.5(a); *Trackman v. Kenney* (2010) 187 Cal.App.4th 831,844.)

Here, the Judgment By Default After Trial was entered on 6/21/2024. Plaintiff did not file this Motion to Vacate until 7/8/2026, more than two years after the Judgment has been entered.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404305	BENAVIDES VS PELAYO	MOTION TO COMPEL COMPLIANCE

Tentative Ruling:

GRANT

Records responsive to the Request for Production of Documents, Set One, to be provided to Defense counsel within 10 days.

Defendants Alexis Pelayo and Isela Jacqueline Medina Pelayo are sanctioned in the sum of \$1,530.00, payable to Defense counsel within 30 days.